

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201510362	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 12/07/2015 12:45 AM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 6/7/2017	Precinct: 52		
Date/Time CV Reported Mon, 12/07/2015 12:59 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/07/2015 12:59 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Oconnell	17612	955269	PBBX
2. POM Brian Doherty	12054	954743	PBBX
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Doherty	Abuse: Police Officer Brian Doherty stopped § 87(2)(b)	A . Substantiated
B . POM Thomas Oconnell	Abuse: Police Officer Thomas O'Connell stopped § 87(2)(b)	B . Substantiated
C . An officer	Abuse: An officer stopped § 87(2)(b)	C . Officer(s) Unidentified
D . POM Brian Doherty	Abuse: Police Officer Brian Doherty stopped § 87(2)(b)	D . Substantiated
E . POM Thomas Oconnell	Abuse: Police Officer Thomas O'Connell stopped § 87(2)(b)	E . Substantiated
F . An officer	Abuse: An officer stopped § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Abuse: An officer searched a bag possessed by § 87(2)(b)	G . Officer(s) Unidentified
H . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon economic background.	I . Officer(s) Unidentified
J . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	J . Officer(s) Unidentified
K . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	K . Officer(s) Unidentified

Case Summary

On December 7th, 2015, at approximately 12:45 am, § 87(2)(b) (§ 87(2)(b)) and her boyfriend § 87(2)(b) (§ 87(2)(b)) were standing in the vestibule of § 87(2)(b) in the Bronx, where § 87(2)(b) lives, while awaiting a taxi for § 87(2)(b). While waiting, § 87(2)(b) realized that he had left his mobile phone at § 87(2)(b)'s apartment: he quickly handed his backpack to § 87(2)(b) and ran back into the lobby, separated from the vestibule by a short staircase. As § 87(2)(b) ran up the stairs, three uniformed officers entered the vestibule from outside. One of these officers stated "wait – why are you running." § 87(2)(b) stopped and replied that he was not running, but going to get his phone. This officer then asked § 87(2)(b) to come back down (**Allegations A, B, C**). § 87(2)(b) returned to the vestibule, where § 87(2)(b) was still standing with the backpack. The officer then asked § 87(2)(b) for identification, inquired about the contents of his backpack, and then told him to go "get your stuff." When § 87(2)(b) went upstairs, another officer then asked § 87(2)(b) to hand him the backpack (**Allegations D, E, F**), which he allegedly opened and searched (**Allegation G**). Simultaneously, a third officer allegedly spoke offensively to § 87(2)(b) he called her a "whore," and a "Section 8 bitch," and said she had a "silly ass attitude," for the "crappy building" she lived in (**Allegations H, I, J**). This officer also allegedly threatened to "smack the shit out of" § 87(2)(b) (**Allegation K**). The incident did not result in any summonses or arrests, and was not captured on video. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) and § 87(2)(b) rejected mediation. Notice of claim results are pending. § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This case was filed by § 87(2)(b)'s sister, § 87(2)(b) who has not filed any prior complaints. § 87(2)(b) and § 87(2)(b) have not been participated in any prior cases (Board Review 31 –Civilian Histories).
- PO Brian Doherty has been a member of service for 2 years: he has been a subject in 2 prior cases, on 2 force allegations; a 2014 complaint was closed as complainant uncooperative and a 2015 complaint was exonerated. § 87(2)(g)
- PO Thomas O'Connell has been a member of service for 2 years; he has been a subject in 2 prior cases, on 5 allegations; both 2015 complaints were closed as complainant/victim uncooperative. § 87(2)(g).

Findings and Recommendations

Identification of Subject Officers

§ 87(2)(b) and § 87(2)(b) stated that they interacted with three uniformed white males: the officers arrived on foot at approximately 12:45 am, and immediately after the incident were walking in the one-block radius of § 87(2)(b) (issues of location and direction are discussed further in **Allegations A - F**). § 87(2)(b) who interacted with all three officers, stated that they were all blue-eyed: PO1 (discourteous/offensive/threatening language) was 6'0" tall, slim,

with brown hair, in his 30s; PO2 (frisk) was 5'8" tall, medium build, with blonde hair, in his 20s; PO3 (backpack search) was 5'9" tall, medium build, with black hair, approximately 35 years old. § 87(2)(b) whose interactions were more limited to the officer who questioned him, described them as follows: PO1 (questioner) was 5'8", of medium build, with black hair, 20 to 30 years old; PO2 was 5'9", slim, approximately 27 years old; PO3 was 5'6" tall, chubby, approximately 31 years old (Board Review 04, 05 – § 87(2)(b) Statements).

The investigation determined that the subject officers were most likely assigned to the 52nd Precinct's Impact division, which maintains foot-posts in the vicinity of § 87(2)(b) (the only non-Impact foot-post was one mile away). Of the thirteen officers on Impact duty that night, all males, six were white or white-complexioned: PO Brian Doherty, PO Thomas O'Connell, PO Vincent Giordano, PO Brian Orts, PO Daniel Trancucci, and PO Edgar Rivera. While all six fit the general descriptions, only three had blue eyes – PO Doherty, PO O'Connell, and PO Orts. Furthermore, only three were on foot – PO Doherty, PO O'Connell, and PO Rivera (Board Review 23 – Roll Call, Board Review 17, 18 – Officer Pedigrees, MOS Photos). PO Doherty had dark brown hair and PO O'Connell had dark blonde hair, corresponding to § 87(2)(b)'s descriptions. Per the event documents, PO Doherty and PO O'Connell, at 12:55 am, had an AIDED pick-up at § 87(2)(b) – a block away from the incident location (Board Review 22 – Event Documents). No AIDED report was prepared (Board Review 21 – Negative Results).

§ 87(2)(b) and § 87(2)(b) were presented photo arrays of all six possible subjects, but could not make any positive identifications (Board Review 15 – Photo Array Presentations). All six officers were interviewed, but none acknowledged any involvement in the alleged incident, and none recalled being in the vicinity of § 87(2)(b). PO Doherty and PO O'Connell initially stated that they did not leave their foot-post, several blocks north of § 87(2)(b). But when questioned about the AIDED, PO Doherty and PO O'Connell acknowledged that they had passed by § 87(2)(b), while walking to the train station on § 87(2)(b) to return to command). Neither officer recalled a third officer presence.

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Allegations Not Pleaded

Frisk: § 87(2)(b) alleged that officers frisked § 87(2)(b). However, § 87(2)(b) did not suggest that an officer made physical contact with him. § 87(2)(g)

Allegation A: Abuse – PO Brian Doherty stopped § 87(2)(b)

Allegation B: Abuse – PO Thomas O’Connell stopped § 87(2)(b)

Allegation C: Abuse – An officer stopped § 87(2)(b)

Allegation D: Abuse – PO Brian Doherty stopped § 87(2)(b)

Allegation E: Abuse – PO Thomas O’Connell stopped § 87(2)(b)

Allegation F: Abuse – An officer stopped § 87(2)(b)

§ 87(2)(g)

In her CCRB Statement, § 87(2)(b) testified that she and § 87(2)(b) began waiting for his cab shortly prior to 12:45 am, at § 87(2)(b), an Operation Clean Halls building. § 87(2)(b) and § 87(2)(b) did not step out of the building, but stood in the vestibule behind the main door: the vestibule here is an enclosed passageway, with a small staircase that leads up into the main lobby inside. The building’s main stair case is at the rear of the lobby (Board Review 30 – Location Photos). While § 87(2)(b) and § 87(2)(b) did not step out of the building while waiting, § 87(2)(b) saw three officers speaking with someone on the opposite side of the street. § 87(2)(b) believed that the officers appeared to be “looking for something,” but could not articulate why she felt so. After speaking with the individual for approximately a minute, the officers crossed the street and walked past § 87(2)(b). As the officers walked past, § 87(2)(b) suddenly realized that he had forgotten his phone. § 87(2)(b) handed § 87(2)(b) his backpack, left the vestibule, and went up to the lobby, towards the staircase at the rear. As § 87(2)(b) was approaching the staircase, possibly “running,” the three officers entered the vestibule from outside (See Board Review 04 – § 87(2)(b) Statement).

§ 87(2)(b) remained stationary beside the main door, holding the backpack. As § 87(2)(b) was about to climb the stairs, PO1 stated: “why are you running from the cops – come here, let me check you.” § 87(2)(b) complied and re-approached the vestibule. At around this time, § 87(2)(b) told PO1 that § 87(2)(b) was not running from the officers, but attempting to retrieve his phone from upstairs. As § 87(2)(b) neared the split-level, PO2 approached § 87(2)(b) briefly patted his coat and pants pockets, and told him to “go ahead and get your stuff.” As § 87(2)(b) went upstairs, PO3 asked § 87(2)(b) for the backpack, which she provided. PO3 then opened it, reached inside, and felt around, then returning it to § 87(2)(b). At this time, PO1 asked § 87(2)(b) how old she was. When she replied that she was § 87(2)(b) PO1 said that she looked like she was 21 years old. § 87(2)(b) told PO1: “you shouldn’t be looking at me like that, because I’m just a kid.” PO1 then told § 87(2)(b) “What’s your problem? I don’t know why you have this silly ass attitude for this crappy building you live in.” PO1 then called § 87(2)(b) a “whore” and a “Section 8 bitch.” PO1 also stated: “you keep talking like that, I’m going to smack the shit out of you.” At around this time, PO2 and PO3 began telling PO1, “let’s leave,” prompting all three to exit the building (Board Review 04 – § 87(2)(b) Statement).

While § 87(2)(b) did not allege a frisk, he generally corroborated § 87(2)(b)’s testimony: while waiting in the vestibule for his cab, without exiting to the street, § 87(2)(b) realized he had forgotten his phone; as he handed § 87(2)(b) his backpack and moved up to the lobby, he saw three officers approaching the building from outside; as he “speed-walked” up the stairs, the

officers entered the building, and called out as he was reaching the staircase top, stating: “wait – why are you running from us.” § 87(2)(b) stopped and said he was not running, but going to get his phone. The officer then instructed him to come back down, which § 87(2)(b) did. Now in the vestibule with § 87(2)(b) the officer asked § 87(2)(b) for identification, which he did not have. The officer then asked if § 87(2)(b) had any “illegal substances” in the backpack still held by § 87(2)(b). § 87(2)(b) answered that there were no illegal substances inside. An officer then told him to “go do whatever you have to do.” § 87(2)(b) then went back up the staircase and into the lobby, at which time he heard an officer ask § 87(2)(b) if there were illegal substances in the backpack (he did not then handle the backpack). When § 87(2)(b) returned downstairs a few minutes later with his phone, the officers had left. § 87(2)(b) was on her phone with her sister, telling them what had happened (Board Review 05 – § 87(2)(b) Statement).

§ 87(2)(b) and § 87(2)(b) both stated that they saw the three officers standing at § 87(2)(b) § 87(2)(b), soon after the incident. § 87(2)(b) stated that when the officers left (the entire incident lasted ten minutes) and § 87(2)(b) returned (approximately three minutes after they left), she escorted him to his cab, at the corner of § 87(2)(b) § 87(2)(b). As § 87(2)(b) got into the cab, § 87(2)(b) saw the three officers, first standing at one of the other corners, and then moving up the block (she did not specify which corner they were at first, or which direction they moved in). § 87(2)(b) stated that when he and § 87(2)(b) exited the building, he saw two of the officers standing at the northeast corner of § 87(2)(b) § 87(2)(b), while a third officer was walking further north on § 87(2)(b). As § 87(2)(b) approached the intersection, the two officers began to walk north on § 87(2)(b), like the other officer (See Board Review 04 – § 87(2)(b) Statement; Board Review 05 – § 87(2)(b) Statement). On March 8, 2016, investigators visited the area, at which time § 87(2)(b) clarified the following: she saw the three officers walking east on § 87(2)(b); when they neared the southwest corner of the intersection there, the officers began running, turning right on § 87(2)(b). (Board Review 16 – Field Work Notes).

§ 87(2)(b) § 87(2)(b)'s adult sister, also reported the same time when she called the CCRB approximately 10 minutes after the incident (Board Review 01, 03 – First DIRAD, § 87(2)(b) Intake Statement). The CCRB's DIRAD system logged § 87(2)(b) first call at 12:59 am, now recorded in the complaint coversheet as the “C/V reported date/time.” During the investigation's March 8th field visit, § 87(2)(b) stated that she may have recently seen the same officers walking past the building, again while standing by in the vestibule. § 87(2)(b) stated that she called the assigned investigator twice, as soon as she saw them, and provided her call log display for examination (Board Review 32 – Call Log Photo). However, § 87(2)(b) did not step outside to get a better look at them, and could not further enhance her earlier descriptions. Additionally, § 87(2)(b) then modified her testimony about the officers' blue-eyes, stating that one of them may have been hazel-eyed (Board Review 16 – Field Work Notes).

In the 52nd Precinct, Impact officers are assigned to foot patrol posts, and each post covers a defined radius (while confirmed by the interviewed officers, the investigation was unable to obtain any cartographic records regarding these posts). The relevant Impact roll call, entirely male, shows thirteen officers and two sergeants on duty from 5:30 pm on December 6th to 2:00 am on December 7th. (Board Review 23 – Roll Call). Sgt. Harold Murphy and Sgt. George Fristensky are both white, but did not fit the descriptions (Board Review 18 – MOS Photos). Of the thirteen officers, five self-identified as white, and one appeared to be white: PO Brian Doherty, PO Thomas O'Connell, PO Vincent Giordano, PO Brian Orts, PO Daniel Trancucci, and PO Edgar River (light-complexioned Hispanic). While all six fit the height, weight, and age range, only PO Doherty, PO O'Connell, and PO Orts had blue eyes (See Board Review 17, 18 – Officer Pedigrees, MOS Photos). Additionally, only three of the six were assigned to foot-posts:

PO Doherty, PO O'Connell, and PO Rivera. PO Doherty and PO O'Connell were partnered together at post 20. PO Rivera was partnered with PO Luilly Lopez (Hispanic male) and PO James Lindquist (black male) at post 4, the only three-member assignment that night (Board Review 23 – Roll Call, Board Review 24 to 29 – Officer Memo Books). The other three possible subjects, PO Giordano (partnered with PO Berrios, Hispanic), PO Orts (partnered with Sgt. Murphy), and PO Trancucci (partnered with Sgt. Fristensky), were all assigned to RMPs, patrolling the whole Impact zone. PO Trancucci was on meal between 12:30 am and 1:30 am (See Board Review 17, 23, 24 -29 – Officer Pedigrees, Roll Call, Memo Books).

The event documents did not reference any relevant jobs on § 87(2)(b) at or around the incident time. The only job near the incident time and location was one recorded at 12:56 am at § 87(2)(b). – exactly one block from § 87(2)(b) marked as a pick-up job, a unit identified as post 20 requested EMS to the scene, in regards to an intoxicated male. PO O'Connell and PO Doherty both noted a “pick-up AIDED” in their memo books, but only PO O'Connell noted the address (as § 87(2)(b)). PO O'Connell also noted a car stop with VTL summonses issued at 11:35 pm at § 87(2)(b) (Board Review 22 – Event Documents; Board Review 24, 25 – PO Doherty, PO O'Connell Memo Books). All six officers' memo books did not reference the incident, location, or victims (Board Review 24 to 29 – Officer Memo Books).

§ 87(2)(b) and § 87(2)(b) were presented photo arrays of PO Doherty, PO O'Connell, PO Rivera, PO Giordano, and PO Orts. Each array was comprised of six photographs, including the officer. While PO Doherty's, PO Giordano's, and PO Orts' photographs were somewhat consistent with their in-person physical likeness, PO O'Connell's and PO Rivera's photographs did not resemble their in-person likeness. § 87(2)(b) and § 87(2)(b) were unable to positively identify any officer. Without certainty, § 87(2)(b) suggested that PO Doherty looked like one of the three officers (Board Review 15 – Photo Array Presentation; Board Review 37 – Photo Arrays).

All six officers were interviewed, but none recognized or recalled the incident, the allegations, or the victims' photos, in any manner. PO Giordano, PO Orts, and PO Trancucci did not recall being at or around § 87(2)(b) and had little knowledge of foot-post activity there (Board Review 09, 29 – PO Trancucci Statement, Memo Book; Board Review 12, 26 – PO Giordano Statement, Memo Book; Board Review 13, 28 – PO Orts Statement, Memo Book). PO Rivera testified that did not recall being in the vicinity of § 87(2)(b) and did not recognize the building's photograph. PO Rivera stated that he was not post-changed or separated from his partners that night. None of the above officers recalled working with PO Doherty or PO O'Connell while on that tour (Board Review 14, 27 – PO Rivera Statement, Memo Book).

In their CCRB testimonies, PO Doherty and PO O'Connell stated that they did not recall if they were at or around § 87(2)(b) that night (none of PO Doherty's memo book entries had addresses; while PO O'Connell noted addresses, he did not bring his memo book to his interview, though he promptly faxed it later). Neither officer recognized § 87(2)(b) or § 87(2)(b) by name or photograph. Initially, both officers stated that they did not move outside their foot post, which was limited in radius to § 87(2)(b), and which did not include § 87(2)(b) or its general vicinity (Board Review 10, 24 – PO Doherty Statement, Memo Book; Board Review 11, 25 – PO O'Connell Statement, Memo Book). When questioned further about the AIDED with the event documents, the officers acknowledged being at § 87(2)(b) at 12: 56 am (PO O'Connell was not be questioned about the job at § 87(2)(b), since no memo book was available). The officers stated that they typically return to the command at 1:00 am, Impact standard practice, usually via the train on § 87(2)(b). The

officers stated that they were likely walking to § 87(2)(b) . that night, and thus passed through § 87(2)(b) ., at which time they encountered an intoxicated male. While the officers acknowledged it was a pick-up, they could not recall further substantive details regarding the job, such as how, who, or exactly where they first encountered the male, and if they did anything beyond calling for EMS transport. Both officers stated that they did not recall any other officers being involved in the AIDED, and did not recall working with or meeting other officers during that tour, including PO Rivera. While PO Doherty did not recall responding to any past jobs at § 87(2)(b) PO O’Connell recalled conducting a past vertical patrol at the building, but did not know when. Both officers maintained that they were not at § 87(2)(b) on the night in question (Board Review 10, 24 – PO Doherty Statement, Memo Book; Board Review 11, 25 – PO O’Connell Statement, Memo Book).

“No matter the location, luxurious or modest, the police must have ‘some objective credible reason’ to request information about a person’s residency or identity.” (Board Review 33 – People v. Ventura, 2010 NY Slip Op 20514) A request for information is not a common-law inquiry – a more intrusive encounter involving accusatory questioning, justified when officers have “founded suspicion” of criminal activity: inquiries regarding the contents of a bag require founded suspicion, unless something is plainly unusual about the circumstances of the bag or its owner. (Board Review 34 – People v. Hollman 79 N.Y.2d 181). To stop an individual, officers must have “reasonable suspicion” that a crime has been, is being, or is about to be committed: flight alone cannot justify a police pursuit, even if there are “equivocal circumstances”; even in a “drug-prone location,” one has “a right ‘to be let alone’ and refuse to respond to police inquiry.” (Board Review 35 – People v. Holmes, 81 N.Y.2d 1056 (1993)) “Whenever an individual is physically or constructively detained by virtue of a significant interruption of his liberty of movement ...that individual has been seized...whether a person submits to the authority of the badge or whether he succumbs to force.” (Board Review 36 – People v. Cantor, 36 N.Y.2d 106 (1975))

§ 87(2)(g)
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§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegations A, D, B, and E** be closed as **Substantiated**, and **Allegations C and F** be closed as **Officer Unidentified**.

Allegation G: Abuse – An officer searched a bag possessed by § 87(2)(b)
Allegation H: Discourtesy– An officer spoke discourteously to § 87(2)(b)
Allegation I: Offensive Language– An officer made remarks to § 87(2)(b) **based upon economic background.**
Allegation J: Offensive Language – An officer made remarks to § 87(2)(b) **based upon the gender of** § 87(2)(b)
Allegation K: Abuse –An officer threatened § 87(2)(b) **with the use of force.**

As discussed in the explanation of officer identification, and in the preceding allegations, the investigation was unable to identify the third subject officer. § 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegations G, H, I, J, and K** be closed as **Officer Unidentified**.

Squad: 8

Investigator: _____

	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date